	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
22	TRO885272FTC	Unknown	Burgin, Mary	Burgin, Mary	3306		X	X				Motion is not included on the Trust's summary. Diagnosed 1957. Alleges she was a child, but bar date was in 2009 (52 years later). No legally sufficient grounds for excusable neglect or due process relief. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
23	TRO884358FTC	11/25/2015	Butler, Joanne	Joanne Butler	3307	8247	X	X				Former resident of Columbus, MS. Diagnosed in 2002 and 2004, was told by attorney in 2005 that she could not file a claim because she had filed for bankruptcy, then in 2009 when notices sent out she was living in Fayetteville, North Carolina. A supplement filed at dk #8247, says was unaware of the bankruptcy filing or that a trust for tort claims had been established. Attorney's advice is not grounds for excusable neglect or due process relief. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Contact with attorney shows awareness of legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
24	TRO885414FTC	11/25/2015	Smith, Undra	Shannon Smith	3308		X	X				Diagnosis in 1999, exposure began in 1987. Contends she was a child but if exposure began in 1987 she had to be over 21 years old by the bar date in 2009. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. No legally sufficient showing of entitlement to excusable neglect or due process relief. In addition, claim was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
25	TRO884291FTC	11/25/2015	Macon, Kimberly	Kimberly Macon	3309		X	X				Exposure in 1970s, diagnosed 2000. Alleges that she did not know she needed to supplement her late-filed claim but does not assert valid reasons as to why her failure to file by the bar date should be excused. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
26	TRO884072FTC	11/13/2015	Ellis, Deborah Bishop	Deborah Bishop Ellis	3310		X	X				Diagnosed 2001, alleges did file a claim in a proceeding in 2001 and never heard back from lawyer. Filing in 2001 must have been in connection with a class action, bankruptcy was not filed until 2009. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Prior legal claim shows knowledge of rights, failure to pursue the same diligently is not grounds for relief based on excusable neglect. Attorney error is not a ground for excusable neglect or due process relief. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, claims based on 2001 diagnosis were time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
27	**TRO886430FTC**	**Unknown**	**Harris, Gladys**	**Gladys Harris**	3311			X				Motion is not included on the Trust's summary. Motion contains no information, just a signature page.
28	TRO866693FTC	12/7/2015	Moore, Kimberley	Kimberley Moore	3312		X	X				Diagnosed 2003. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
29	TRO885632FTC	Unknown	Williams, Morgan	JaMilla Williams	3314			X		X		Motion is not included on the Trust's summary. Diagnosed 2001, filing on behalf of daughter, unaware exposed, child started daycare in 2001 and got meningitis which mom believes is from exposure; same motion filed at docket #4436 with some additional conditions, brochial conditions 2011 and 2012. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect as to pre-bar date diagnoses. Merits of any claim alleging conditions first diagnosed after the bar date are to be resolved by the Tort Claims Trust under its dispute resolution procedures.
30	TRO886396FTC	12/7/2015	Harris, Jamar	Jamar Harris	3315		X	X				Date diagnosed is "yes." Alleges did do paperwork in 1999, but it was lost by attorney William Bambach, who is deceased. Mr. Bambach did not die until long after the bar date. Attorney error also is not proper ground for excusable neglect or due process relief. Prior paperwork likely was in connection with different legal proceeding as Tronox bankruptcy was not filed until 1999. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Prior dealings with counsel confirm movant's awareness of legal rights and claims. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, claims that had accrued as of 1999 were time-barred under the applicable statute of limitations by the time of the Tronox bankruptcy filing in 2009.
31	TRO886864FTC	Unknown	Morrison, Alice	Rosemary Horton	3316	8077	X	X				Diagnosed 1991, filing on behalf of mother who died in 1993. Child says had no reason to know she had been exposed. A supplement filed at docket # 8077 says child was unaware of bankruptcy case, had moved away from area. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
32	TRO886694FTC	12/7/2015	Malone, Traveres	Kimberley Moore	3317		X	X				Diagnosed 1997, deceased 2010. Representative says he was not aware. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, claim was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
33	TRO884359FTC	11/25/2015	Williams, James	Maggie Williams	3318		X	X				Diagnosed 1978, alleges did file POC and attaches letter from DOJ (from 2010). DOJ said this matter is not within their jurisdiction, and forwarded the matter to the U.S. Environmental Protection Agency. Complaint to DOJ does not constitute a proof of claim in the Tronox bankruptcy case. No challenge to due process, no explanation as to excusable neglect or as to due diligence in pursuing claim. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.
34	TRO884360FTC	11/25/2015	Williams, Maggie	Maggie Williams	3319		X	X				Diagnosed 1986, alleges complained to Department of Justice in 2010 but it lacked jurisdiction and forwarded the matter to the U.S. Environmental Protection Agency. Complaint to DOJ does not constitute a claim in the bankruptcy case. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. No showing as to reasons why failed to meet bar date or as to diligent investigation and pursuit of claim. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
35	**Unknown**	**Unknown**	**Durrah, Reonna**	**Reonna Durrah**	3320			X				Motion is not included on the Trust's summary. Diagnosed 2004, filing on behalf of daughter. Says both that "I didn't find out about it until it was too late" and "I thought that she wasn't old enough." Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Not a sufficient showing of timely action and diligent investigation to warrant relief based on excusable neglect, no claim of lack of due process.

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							A	B	C	D	E	
36	TRO886805FTC	12/7/2015	Oden, Turner	Turner Oden	3321		X	X				Diagnoses 1970, 2004, 2008. Thought he was part of a class action in 2003, then his claim "disappeared." Claim in prior action shows knowledge of rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claims based on 1970 and 2004 diagnoses also were time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
37	TRO884471FTC	11/25/2015	Butler, Virginia	Virginia Butler	3322		X	X				Diagnosed 1970, claims no notice of the case "in local Columbus, MS paper or on TV." In fact, notice was published in the Commercial Dispatch (the local Columbus newspaper) and in other area newspapers. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.
38	TRO884470FTC	11/25/2015	Butler, Gilbert, Jr.	Gilbert Butler, Jr.	3323	8125	X	X				Diagnosed 1971, says no publication in local newspaper. A supplement with medical records filed at docket #8125. In fact, there was publication in the local newspaper (the Commercial Dispatch) in June 2009, as evidenced by the affidavit of publication on file with the court, which includes a copy of the published notice. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.
39	TRO886949FTC	12/7/2015	Fortini, Carina	Carina Fortini	3325	8090		X		X		Diagnosed 2007-2009 (possibly two different conditions, but unclear). Seems to be saying that she had sent doctors' forms in. A supplement filed at docket #8090. Possible post-bar date diagnosis (dates not specified). Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect as to pre-bar date diagnoses. Merits of any claim alleging conditions first diagnosed after the bar date are to be resolved by the Tort Claims Trust under its dispute resolution procedures.

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							A	B	C	D	E	
40	TRO886773FTC	12/7/2015	Nicholson, Renel	Renel Nicholson	3326						X	Diagnosed 1997-2001 (various diseases). Was 17 at time of deadline. Claims he was not able to file a claim as a minor but does not allege lack of knowledge or reason why a guardian did not act. Will permit supplemental submission to explain why parent or guardian did not act, why claimant waited until 2015 to file a claim, and whether relief is warranted.
41	TRO886723FTC	12/7/2015	Hannon, Ryan	Ryan Hannon	3327			X				Answered "yes" to question about whether was diagnosed, but then says "did not think I had any reason that I had been exposed." Had moved to PA in 2004. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
42	TRO887140FTC	12/14/2015	Yancey, Yvonne	Yvonne Yancey	3328		X	X				Former resident of Columbus, MS. First diagnosed 1984; says "did not know or had no reason to know of any exposure to a Tronox-Kerr-McGee product prior to the claim filing deadline." Moved to CA in 1976. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
43	TRO884931FTC	11/25/2015	Baldwin, Willie	Willie Baldwin	3329	3999	X	X				Duplicate motion at docket # 3999. First diagnosed 1979, "never received paperwork." No challenge to sufficiency of publication notice, no showing of excusable neglect. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
44	TRO886922FTC	12/7/2015	Stewart, Fred Sr.	Luella Hughes	3330		X	X				Diagnosed 1987, filing on behalf of deceased father (Fred E. Stewart, Sr.). Claims "the lack of publication notice of the Claims filing Deadline was not reasonably calculated to provide notice to potential claimants who were unknown at the time of the notice." No evidence or explanation in support of this claim, amounts to a legal challenge to the sufficiency of publication notice in general rather than a challenge to the specific notices in this case. Publication notices complied with due process for the reasons stated in the accompanying decision. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.
45	TRO884724FTC	11/25/2015	Moore, Terrance	Terrance Moore	3331	8239					X	Diagnosed 1994, "no reason to know exposed." Minor child living in another state at the time. Rejection notice filed at docket # 6772. A supplement filed at docket #8329. Says did not have access to Wall Street Journal but notice also was published in the Commercial Dispatch in Columbus, MS on June 23, 2009 and in several other newspapers in Mississippi and Alabama. Will permit supplemental submission to explain why parent or guardian did not act, why claimant waited until 2015 before filing a claim, and whether that warrants relief.
46	TRO885096FTC	11/25/2015	Mosely, Marcus	Marcus Mosely	3332			X		X		Diagnosed in 2016 (after the bar date). Says "my claim was filed on time" but appears to be referring to a more recent claim rather than a claim made prior to the bar date. No pre-bar date diagnosis identified for which relief is sought, therefore no basis for relief based on excusable neglect or due process. Any claim as to a condition first diagnosed after the bar date is to be resolved by the Tort Claims Trust under its dispute resolution procedures.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
47	TRO884722FTC	11/25/2015	Moore, Ruth	Ruth Moore	3333	8329	X	X				Diagnosed 1994, "no reason to know exposed," was living in another state at the time (now lives in Alabama). Rejection notice filed at docket #6773. A supplement filed at docket #8329, says did not get WSJ and did not have internet. Alleges no publication in local newspaper, but in fact notice was published in the Commercial Dispatch in Columbus, MS and also in The Birmingham News in Birmingham, Alabama. Says if she had known, she would have filed a claim. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, claim appears to be based on exposures in Columbus MS, in which case the claim was barred under the applicable statute of limitations before the Tronox bankruptcy filing.
48	TRO884261FTC	11/25/2015	Cunningham, David	David Cunningham	3334	6992		X		X		Lists diagnoses in 2009, 2015, 2014. Alleges that attorney failed to file paperwork, but time period unclear. Supplement filed at docket #6992, says sent paperwork many times; says attorney dropped the ball and claimant was left to resend paperwork numerous times, all of which appears to refer to correspondence with the Trust about the late-filed claim. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect as to pre-bar date diagnoses. Alleged misconduct of counsel is not grounds for relief based on excusable neglect or due process in the absence of a showing that counsel's own failures should be excused. Merits of any claim alleging conditions first diagnosed after the bar date are to be resolved by the Tort Claims Trust under its dispute resolution procedures.
49	TRO887363FTC	12/14/2015	Noland, Winston	Winston Noland	3335	8271	X	X				Former resident of Columbus, MS. Diagnosed 1993, was out of state, also alleges lawyer was "crooked." A supplemental letter filed at docket #8271. Complaint about lawyer's services is not a basis for excusable neglect or due process relief unless the lawyer's conduct can be excused. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.

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							A	B	C	D	E	
50	TRO884876FTC	11/25/2015	Salter, Lorey	Lorey Salter	3336		X	X				First diagnosed 2003, alleges that he made a claim in 2001-2005 through an attorney and against Kerr-McGee. Claim during that period must have been in connection with a prior class action as the bankruptcy case was not filed until 2009. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Participation in prior proceeding confirms awareness of claim and of legal rights. Conduct of counsel is not grounds for relief based on excusable neglect or due process unless counsel's conduct can be excused. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect as to pre-bar date diagnoses. If claim was not resolved in a prior lawsuit, it was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
51	TRO884361FTC	11/25/2015	Williams, Rick	Rick Williams	3337		X	X				Diagnosed 1990, alleges did file a claim with church group (Maranatha Faith Center), and that "other went to US Justice Dept." Filing with the Church or the DOJ is not the same as filing a lawsuit or filing a bankruptcy proof of claim. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Prior dealings with church and DOJ show awareness of claim. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
52	TRO886724FTC	12/7/2015	Hannon, Nancy	Nancy Hannon	3338			X				Diagnosed 1993. Claims "did not know and no reason to know exposed." Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
53	TRO886725FTC	12/7/2015	Hannon, Michael	Michael Hannon	3339			X				Diagnosed "yes." No real allegations - says used to play baseball next to the plant (also now lives in PA, but does not allege lack of due process or excusable neglect or grounds upon which relief from the bar date should be granted. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
54	TRO886738FTC	12/7/2015	Hannon, Matthew	Matthew Hannon	3340			X				Diagnosed "yes." Says "did not know exposed." Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
55	TRO884362FTC	11/25/2015	Williams, Romone	Romone Williams	3341		X	X				Diagnosed 1988. Alleges filed claim with church group in 2009; unclear what that is, but it does not constitute a litigation or the filing of a proof of claim in the Tronox case. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, claim was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.
56	TRO884353FTC	11/25/2015	Moody, Itell	Sarah Harris Hughes	3342		X	X				Diagnosed 1976. Was part of a prior class action. Not a "future tort claim" where disease was manifested and claimant already participated in a prior proceeding. Either the claim was resolved in a prior action or, if not, it was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
57	TRO885778FTC	11/25/2015	Miglionico, Cory	Cory Miglionico	3343			X				Does not say when diagnosed exactly, but had kidney problems at 10 years old and was born in 1961. Says did not file because 1) "I was sick" and 2) did not know that he could - thought it was for Avoca residents only. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
58	TRO884877FTC	11/25/2015	Salter, Corle	Corle Salter	3344			X		X		Says diagnosed in 2011 but also claims to have been part of a class action many years earlier with Wilbur Colon as counsel. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Participation in prior proceeding shows awareness of claim and of legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect as to pre-bar date diagnoses. Merits of any claim alleging conditions first diagnosed after the bar date and all defenses thereto (including defenses as to whether prior class action barred future claims) are to be resolved by the Tort Claims Trust under its dispute resolution procedures.
59	TRO887198FTC	12/14/2015	Green, Ivory	Ivory Green	3345		X	X				Diagnosed 1999, was "not aware disease was connected to chemicals until later," filed when heard of claims process in 2015. No specifics as to excusable neglect or due process contentions given diagnosis in 1999. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, the claim was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
60	TRO884879FTC	11/25/2015	Salter, Gavin	Gavin Salter	3346			X				Diagnosed 2007, was not aware of claims deadline because "there were no information given until 2015." But also claims was part of prior litigation with Wilbur Colon as counsel. Not a "Future Tort Claim" if participated in a prior legal proceeding. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Participation in prior proceeding confirms awareness of claim and legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
61	TRO887617FTC	12/14/2015	Congious, Sarah	Norcasha Congious	3347		X	X				Diagnosed 2005, filing on behalf of dead mother. Mom died, father allegedly became incompetent - drug and alcohol dependent. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Insufficient showing of incompetence at time of bar date. In addition, claim was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
62	TRO885522FTC	Unknown	Richards, Atrice	Attrice Richardson	3348		X	X				Motion not included in Trust's summary. Diagnosed 1971, alleges child at time of deadline, but is old enough to have been diagnosed in 1971 so must have been approximately 38 years old at the time of the bar date. No other information provided, no other excuse offered. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. No showing as to relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, claim was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
63	TRO886520FTC	12/7/2015	Moore, Loretta	Latanya Moore	3349	8371	X	X				Diagnosed 1980, the injured party died in 1998; rep lived out of town in 2009. A supplement filed at docket #8371, rep unaware of the bankruptcy case. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under applicable statute of limitations before the Tronox bankruptcy filing.
64	TRO885038FTC	11/25/2015	Dunn, Melinda	Melinda Dunn	3350			X				Previously filed with atty Robert Powell in 2003, he was later incarcerated for corruption. Says she did not receive any notice or contact to inform her of bar date; later a friend informed her and she did some research and learned of future tort claim. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Contact with counsel in 2003 confirms awareness of legal rights. Conduct of counsel is not grounds for relief based on excusable neglect in the absence of a showing that counsel's own conduct should be excused. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
65	TRO885254FTC	11/25/2015	Howard, Pearlie	Pearlie Howard	3351	3398 8060 8877		X		X		Diagnosed in 2010, exposed 12/13/2009. At time, did not know exposed. Moved out of area (lost all when house was destroyed) to Alabama; unaware of claims deadline. A duplicate of parts of this claim filed at docket #3398 and a supplement at docket # 8060. A supplemental letter filed at docket #8877 complaining about the process. No pre-bar date diagnosis identified for which relief is sought, therefore no basis for relief based on excusable neglect or due process. Any claim as to a condition first diagnosed after the bar date is to be resolved by the Tort Claims Trust under its dispute resolution procedures.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
66	TRO886975FTC	12/7/2015	Woodrick, Demetrius	Demetrius Woodrick	3352		X	X				Diagnosed in 2000. Alleges he made a claim in 2000 but attorney lost it. Any claim filed in 2000 must have related to a different proceeding because the bankruptcy case was not filed until 2009. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Prior claim in another proceeding confirms prior awareness of injury and cause. Attorney conduct also is not grounds for excusable neglect or due process relief in the absence of a showing that the attorney's conduct was excusable. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
67	TRO887463FTC	12/14/2015	Hughes, Deborah	Deborah Hughes	3353		X	X				Diagnosed "yes," exhibited symptoms in 1999. Alleges that attorney lost the claim. Attorney conduct is not grounds for excusable neglect or due process relief unless the attorney's conduct can be excused. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Dealings with counsel confirm awareness of legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
68	TRO884817FTC	11/25/2015	Coleman, Cameron	Cameron Coleman	3354			X				Diagnosed 1997. Claims was minor child in 1997 but no allegations as to status in 2009 or as to reasons why claim not filed before bar date. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
69	TRO885775FTC	11/25/2015	McArtur, Alicia	Alicia McArthur	3355			X				Diagnosed 1975. "Unaware of proceedings." No due process challenge, insufficient explanation as to alleged excusable neglect. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
70	TRO885032FTC	11/25/2015	Ryan, Larry	Larry Ryan	3356		X	X				Diagnosed 1958. "Did not hear about claims filing." No explanation as to whether anything was done since 1958 diagnosis to pursue a claim. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
71	TRO885834FTC	11/25/2015	Bishop, John	Scherrell Sturdivant	3357			X				Diagnosed 2008. Someone (no indication who) said could not file on behalf of deceased family members. Not contend lack of knowledge or awareness of bar date. Alleged bad advice from another person is not grounds for relief unless the bad advice can be excused. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
72	TRO885938FTC	11/25/2015	Smith, Alfonzo	Alfonzo Smith	3358		X	X				Diagnosed 1980. "Had filed previous claim with no correspondes [sic] from Tronox. Did not realized I was qualified to reapply." Was part of prior litigation with Colon law firm. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Dealings with Colom firm confirm awareness of legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim either was resolved in prior litigation or, if not, it was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
73	TRO886675FTC	12/7/2015	Dismuke, Timothy	Timothy Dismuke	3359		X	X				Diagnosed 2000. Says attorney (William Barbach) lost paperwork. Attorney conduct is not grounds for excusable neglect or due process relief unless the attorney's conduct is excused. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Dealings with counsel confirm awareness of claim and legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, claim was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
74	TRO886674FTC	12/7/2015	Dismuke, Betty	Betty Dismuke	3360			X				Diagnosed "yes." Only says "I did paperwork was lost threw [sic] attorney." Unexcused attorney conduct is not grounds for due process or excusable neglect relief. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Dealings with attorney confirm awareness of legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
75	TRO887459FTC	12/14/2015	Harris, Tremarcus	Tremarcus Harris	3361			X				Diagnosed "yes." Says attorney lost paperwork. Unexcused attorney conduct is not grounds for excusable neglect or due process relief. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Dealings with attorney show awareness of legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
76	TRO887571FTC	12/14/2015	Bryant, Diana	Diana Bryant	3362			X				Was never diagnosed, "I sense it on my own." Began exhibiting symptoms not before 2004. Only says that did not file claim because didn't know about the process, sent claim when found out. Says did not get a lawyer to pursue claim due to cost. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
77	TRO884247FTC	11/25/2015	Gadner, Eugene	Eugene Gadner	3363		X	X				Diagnosed 1999, says attorney lost paperwork in 1999. Part of prior litigation. Attorney conduct not grounds for excusable neglect or due process relief without a showing that the attorney's conduct should be excused. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Contact with attorney confirms awareness of legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. In addition, claim was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
78	TRO886794FTC	12/7/2015	Parks, Marquez	Marquez Parks	3364		X	X				First diagnosed 1988, says "I did file a proof of claim on July 12, 2009 and never heard anything else from my claim." Alleges that a timely claim was filed but there is no record of such a claim. Even if a claim had been filed, it was time-barred under the applicable statute of limitations before the Tronox bankrutpcy filing.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
79	TRO886953FTC	12/7/2015	Pound, Carmen	Carmen Pound	3365			X				Diagnosed 1971, states that she moved her family twice in 2009, and had no permanent residence until September 2009. Does not challenge publication notice, does not make out legally sufficient case of due process violation. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
80	TRO886102FTC	Unknown	Swoop, Roosevelt	Roosevelt Swoop	3366			X				Motion not included in Trust's summary. Diagnosis year not included, exhibited symptoms in 1969, previously filed a claim or legal proceeding against Tronox, says that "I filed a tort claim trust" but appears to be referring to the late claim that was filed. No circumstances alleged to show excusable neglect, no due process claim made.
81	TRO884260FTC	11/25/2015	Bailey-Britton, LaTara	LaTara Bailey-Britton	3367	9469		X		X		Claims she filed a claim in connection with an earlier lawsuit and a claim in 2009 for which she heard nothing, then filed claims again in later years. No record of any proof of claim filed in the Tronox bankruptcy case in 2009. Prior lawsuit shows awareness of legal rights and claims. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. If claimant believes that she actually filed a timely claim in 2009 she may raise that issue with the Tort Claims Trust but that does not represent a request for relief based on excusable neglect or due process.
82	TRO884258FTC	11/25/2015	Bailey, Brandon	LaTara Bailey-Britton	3368	9471		X		X		First diagnosed in 1997, states that she did file a POC on behalf of her son on July 10, 2009 and "never heard anything else from it." Alleges a timely claim was filed, that is to be addressed by the Tort Claims Trust. Not an excusable neglect or due process issue.
83	TRO885646FTC	11/25/2015	Bradley, McArthur	McArthur Bradley	3369	8784	X	X				First diagnosed in June 1999, states that she did not file POC because she had "no knowledge" of the lawsuit, which was "due to no publication notices of the filing deadline." In fact, the notice of the bar date was published in the Commercial Dispatch (the local Columbus newspaper) in June 2009. In addition, claimant says was part of a 2002 class action with Wilbur Colom as counsel. A supplemental letter filed at docket #8784 complaining about the process. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Participation in prior proceeding confirms awareness of claim and legal rights. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim either was resolved in a prior proceeding or, if not, it was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.

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							A	B	C	D	E	
84	TRO884937FTC	11/25/2015	McCarter, Onassis	Onassis McCarter	3370		X	X		X		Some conditions diagnosed in 1999, others in April 2017. Says she "did not know much" about the Tronox bankruptcy case, thought she had to reside in the area her whole life. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claims based on 1999 diagnoses also were time-barred under the applicable statute of limitations before the Tronox bankruptcy filing. Merits of any claim based on alleged post-bar date diagnoses are to be resolved by the Tort Claims Trust under its normal dispute resolution procedures.
85	TRO887085FTC	12/14/2015	Brown, Earnestine	Earnestine Brown	3371		X	X				Diagnosed 2001, states that did not know about the possibility of receiving a settlement. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
86	TRO887535FTC	12/14/2015	DePetro, Joel	Joel DePetro	3372	4069					X	Claims did not know and had no reason to know exposed to Tronox product; says was a minor. The same claim was filed again at docket #4069. Will allow supplemental submission to confirm age at time of bar date and to explain why parents or guardians did not pursue a claim by the bar date, why claimant waited until 2015 to do so, and whether relief is warranted.
87	TRO887536FTC	12/14/2015	DePetro, Alexis	Alexis DePetro	3373			X				Diagnosed 1990, "did not know or have reason to know exposed prior to deadline." Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
88	TRO886545FTC	12/7/2015	Billups, Connie	Connie Billups	3374		X	X				First diagnosed in 2002, states that she DID file a POC prior to the deadline, but there is no record of such a filing. Even if filed, the claim was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing. No grounds for relief from the bar date are alleged or are proper.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
89	TRO886933FTC	12/7/2015	Mack, Hattie	Hattie Mack	3375		X	X				Diagnosed 1990, alleges that she was in and out of the hospital, did not know she had to file by a deadline, and is taking so much medication that she can hardly think. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
90	TRO887042FTC	12/14/2015	Davis, Ricky	Ricky Davis	3376		X	X				Diagnosed 2000, alleges filed but paperwork was misplaced in 2000 by attorney in prior litigation. Attorney conduct is not grounds for excusable neglect or due process relief unless the attorney's own conduct is excused. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.
91	TRO885718FTC	11/25/2015	Wilson, Jala	Tiffany Wilson	3377			X				Diagnosed 2007, did not know prior to deadline that minor daughter's condition was due to exposure to creosote. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
92	TRO886002FTC	12/7/2015	Wilson, Titus	Titus Wilson	3378			X				Says did not know and was not notified of his exposure to toxins but also says he made a prior claim. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
93	TRO886104FTC	12/7/2015	Smith, Precious	Precious Smith	3379		X	X				Diagnosed 1992, alleges did not know exposed to product at the time, and no one gave her a specific deadline, she filed at the same time as others whose claims were accepted. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.

	CLAIM NO.	DATE CLAIM WAS FILED	INJURED PARTY	MOTION FILER	Docket No.	Other Filings	REASONS FOR RULINGS					Comments and explanations for rulings
							A	B	C	D	E	
94	TRO886105FTC	12/7/2015	Graham, Tekesha	Tekesha Graham	3380		X	X				Diagnosed 1984, alleges did not know exposed to product at the time, and no one gave her a specific deadline, she filed at the same time as her friends. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
95	TRO886368FTC	Unknown	Richardson, Arlicia	Arlicia Richardson	3381						X	Motion not included on Trust's summary. Diagnosed 2004, but "was a child" at the time of the bar date. Will allow supplemental submission to explain why parent or guardian did not make a timely claim, why claimant waited until 2015 to do so, and whether relief is warranted.
96	Unknown	12/14/2015	Dickerson, Lemon	Yvonne Yancey	3383			X				No claim filed and no grounds for relief set forth; sent a letter asking that any correspondence re: her dead father be sent to her address.
97	TRO885076FTC	11/25/2015	Taylor, William, Jr.	William Taylor, Jr.	3384		X	X				Diagnosed 1985, only says "did not know." Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.
98	TRO892144FTC	2/23/2016	Sempa, Barbe	Barbe Sempa	3385			X				Diagnosed 1982, not aware eligible and claims never received notices. Alleges did not live in Avoca area when plant first opened, but also says lived in Avoca since 1981. Only alleges lack of direct notice, not sufficient to establish excusable neglect or due process issue. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of PA starting in 2001. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
99	TRO880348FTC	12/4/2015	Roberts, Teresa	Teresa Roberts	3386			X		X		First diagnosed 1981, additional diagnoses in 2011 and 2016. Says attorney did not inform them of filing deadline. Mistake by counsel is not grounds for due process or excusable neglect relief unless counsel's mistake can itself be excused. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect as to pre-bar date diagnoses. Any claim based on a condition first diagnosed after bar date should be resolved by the Tort Claims Trust under its normal dispute resolution procedures.

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							A	B	C	D	E	
100	TRO886598FTC	12/7/2015	Davis, Eddie	Eddie Davis	3387			X				Illness in 2003, diagnosed 2008, says did not know exposed prior to deadline. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect.
101	TRO887627FTC	12/14/2015	Jones, Torrione	Torrione Jones	3388			X		X		First diagnosed 8/14/2009. "Not notified of opportunity" to file a claim. No pre-bar date diagnosis identified for which relief is sought, therefore no basis for relief based on excusable neglect or due process. Any claim as to a condition first diagnosed after the bar date is to be resolved by the Tort Claims Trust under its dispute resolution procedures.
102	TRO885883FTC	Unknown	Burgin, Terrance	Terrance Burgin	3389			X		X		Motion not included in Trust's summary. Never diagnosed. Exhibited symptoms beginning 10/28/2009. Alleges publication notice insufficient. No pre-bar date diagnosis identified for which relief is sought, therefore no basis for relief based on excusable neglect or due process. Any claim as to a condition first diagnosed after the bar date is to be resolved by the Tort Claims Trust under its dispute resolution procedures.
103	TRO884560FTC	11/25/2015	Sykes, Annie	Kimberly Martin	3390		X	X				First symptoms 1996; as to whether diagnosed, answered "yes." Mother died, filing on behalf of mother. Alleges attorney filed claim in 2002 (must have been another proceeding) but is now dead or not practicing. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Filing of prior claim shows awareness of rights. Attorney conduct is not grounds for excusable neglect or due process relief unless the attorney's own conduct can be excused. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations prior to the Tronox bankruptcy filing.
104	TRO887628FTC	12/14/2015	Ellis, Derrick	Priscilla Ellis	3391		X	X				Injured party diagnosed 1982, died in 1998. Risks of creosote exposure and filings of claims based on the same were the subjects of widespread publicity in the relevant areas of MS starting before 2000. Alleges lack of actual knowledge but no showing as to other relevant factors (including diligence in investigation and pursuit of claims and reasons why filed so long after the bar date), not sufficient for relief based on excusable neglect. Claim also was time-barred under the applicable statute of limitations before the Tronox bankruptcy filing.